

TENTATIVE RULING

Case: **Acclaim Mobility LLC v. Derkach**
 Case No. CV2024-2015

Hearing Date: **August 11, 2026** **Department Thirteen** **9:00 a.m.**

The Court proposes to take judicial notice of the following records contained in the Court's own file: plaintiff Acclaim Mobility LLC's interpleader complaint, filed on August 8, 2024; defendant Viktor Derkach's interpleader answer, filed on June 2, 2025; interpleader plaintiff Acclaim Mobility LLC's memorandum of points and authorities in support of motion for order discharging stakeholder and for related orders, filed on November 10, 2025; and the Court's order on motion for order discharging stakeholder and related orders, filed January 13, 2026. (Evid. Code, §§ 452, subd. (d), 455, subd. (a).) The Court shall afford each party reasonable opportunity before the cause is submitted for decision by the Court to present to the Court information relevant to: (1) the propriety of taking judicial notice of the matter; and (2) the tenor of the matter to be noticed. (Evid. Code, § 455, subd. (a); see also Motion, Exhibits A-C.)

Defendant Viktor Derkach's unopposed motion for return of interpleader funds is **GRANTED**. (Code Civ. Proc., § 386.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Burnham-Bruce v. AWTs, LLC**
Case No. CV2025-2677

Hearing Date: **August 11, 2026** **Department Thirteen** **9:00 a.m.**

Defendant AWTs, LLC's renewed petition to enforce class action waiver and compel arbitration and dismissal is **GRANTED**. (Code Civ. Proc., § 1281 et seq.) "A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8.) A defendant satisfies its "initial burden by attaching to their petition a copy of the purported arbitration agreement bearing [the plaintiff's] electronic signature." (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) Once the plaintiff challenges "the validity of that signature in his opposition, defendants [are] then required to establish by a preponderance of the evidence that the signature was authentic." (*Id.* at pp. 1060-1061; *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 754-755; see also *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843-844.)

The Court finds that defendant satisfied its initial burden by providing a copy of the arbitration agreement with plaintiff's electronic signature. (Edmunds decl., ¶¶ 2-4, Exhibit A.) In the opposition, plaintiff Chenel Burnham-Bruce does not challenge the validity of her signature. (See Opposition, pp. 8-9; Burnham-Bruce decl., ¶¶ 5-9.) Accordingly, defendant has shown the existence of an arbitration agreement between the parties. (*Espejo, supra*, 246 Cal.App.4th at p. 1060; see also Edmunds decl., ¶¶ 6-11, Exhibits B & C.)

In opposing arbitration, plaintiff has failed to show that the arbitration agreement is procedurally unconscionable. (*Jenks, supra*, 243 Cal.App.4th at p. 8; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) Specifically, the signed arbitration agreement states: "the Parties represent that they have been given the opportunity to fully review, understand and negotiate the terms of this Agreement." (Edmunds decl., ¶ 3, Exhibit A, p. 4.) It further states: "I understand that I have the right to decline the opportunity to participate in mutual arbitration and to reject this Agreement if I so choose without affecting my eligibility for employment or, alternatively, continued employment, by the Company." (*Ibid.*; see also Burnham-Bruce decl., ¶¶ 3-10.) As plaintiff has not established procedural unconscionability, the Court does not reach substantive unconscionability. (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329.)

Based on the parties' agreement, plaintiff's class action claims are **DISMISSED**. (See *Epic Sys. Corp. v. Lewis* (2018) 584 U.S. 497, 525; Edmunds decl., ¶ 3, Exhibit A.) In all other respects, this matter is **STAYED**, pending the outcome of arbitration. (Code Civ. Proc., § 1281.4; *Franco v. Arakelian Enterprises, Inc.* (2015) 234 Cal.App.4th 947, 966.) The Court sets a status hearing for **February 11, 2027**, at 9:00 a.m. in Department Thirteen.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.